NOTES ON OBLIGATIONS · CASE COMMENT

Robinson

v Chief Constable of West Yorkshire Police
[2018] UKSC 4, [2018] AC 736

Acts, Omissions and the Police

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On a July afternoon in 2008 two detectives tried to arrest a man suspected of dealing drugs on a shopping street in the centre of Huddersfield. He resisted, and the three men fell against Mrs Robinson, a woman of 76 who was walking past, and knocked her to the ground. The trial judge found that the officers had been careless in attempting the arrest where and when they did, but held that the police owed no duty of care to a passer-by hurt in the course of their work against crime. The Court of Appeal agreed. The Supreme Court did not.[1]

Lord Reed, with whom Lady Hale and Lord Hodge agreed, began by correcting a reading of the law that had gone uncorrected for almost thirty years.[2] This comment argues that the case matters less for what it decided about the police than for the method it restored. A court asked whether a duty of care exists should look first for an established category

[1] *Robinson v Chief Constable of West Yorkshire Police* [2018] UKSC 4, [2018] AC 736.
[2] ibid [21].

and reason from it by analogy; it should weigh questions of policy only when the case is new.

There is no "Caparo test"

The modern law begins with Lord Atkin's statement that a person must take reasonable care to avoid acts or omissions which he can reasonably foresee would be likely to injure his neighbour.[3] In the 1970s the House of Lords tried to turn that statement into a general formula. Lord Wilberforce proposed two stages: a relationship of proximity in which harm was foreseeable, and then any considerations that ought to negative or limit the duty.[4] The formula expanded liability faster than the courts could defend, and *Anns* was overruled in 1990.[5]

In the same year Lord Bridge described the ingredients of a duty as foreseeability of damage, a relationship of proximity, and a situation in which the court considers it fair, just and reasonable to impose a duty.[6] Many judges went on to apply it as a three-stage test to every claim, including claims for physical injury caused by a positive act. Lord Bridge had said the opposite. He doubted that any single test could settle every case and preferred that the law develop novel categories incrementally.[7]

Robinson restores that reading. Where a case falls within an established category, the court applies the law as settled; the question of what is fair, just and reasonable arises only where the court is asked to go further.[8] Physical injury caused by a careless positive act has been an established category since *Donoghue*. The officers' decision to make the arrest in a crowded street was such an act, the risk to people nearby was foreseeable, and nothing more was needed to found a duty.[9]

Acts and omissions

The common law does not, in general, impose a duty to protect another from harm caused by a third party or by nature.[10] Lord Hoffmann gave

[3] *Donoghue v Stevenson* [1932] AC 562 (HL) 580.

[4] *Anns v Merton London Borough Council* [1978] AC 728 (HL) 751–52.

[5] *Murphy v Brentwood District Council* [1991] 1 AC 398 (HL).

[6] *Caparo Industries plc v Dickman* [1990] 2 AC 605 (HL) 617–18.

[7] Lord Bridge adopted the words of Brennan J in the High Court of Australia; see ibid 618; *Sutherland Shire Council v Heyman* (1985) 157 CLR 424 (HCA) 481.

[8] *Robinson* (n 1) [26–27].

[9] ibid [74].

[10] *Smith v Littlewoods Organisation Ltd* [1987] AC 241 (HL) 271.

the reason in political terms: it is less of an invasion of a person's freedom to require him to take care when he chooses to act than to require him to act at all, and a duty to rescue invites the question why it should fall on one bystander rather than another.[11] The rule has exceptions: where the defendant has assumed responsibility, controls the source of the danger, or has created it.

Read in this light, the earlier police cases were cases about omissions. In *Hill* the mother of the last victim of Peter Sutcliffe sued the force that had failed to catch him. The House of Lords held that no duty was owed to her daughter, who was one of an indeterminate public, and added reasons of policy about the effect of liability on police work.[12] For thirty years *Hill* was cited as if it gave the police a general immunity. Lord Reed treated the policy reasons as a supplement to the ordinary rule: the police, like anyone else, owe no duty to prevent harm by a third party, unless one of the exceptions applies; but they owe the ordinary duty not to injure people by what they themselves do.[13]

The distinction had already decided *Michael*, where a call to the emergency services was wrongly graded and the caller was killed before officers arrived. The majority held that the police had assumed no responsibility for her safety and so owed her no duty in negligence.[14] Academic opinion had divided on the point. One view holds that a public body set up to protect people should bear a narrow duty where it knows of a specific threat to a specific person;[15] the other, that the omissions rule applies to public authorities as it applies to private persons, and that any wider duty is for Parliament.[16]

The statutory route

Section 6(1) of the Human Rights Act 1998 makes it unlawful for a public authority to act in a way that is incompatible with a Convention right,[17]

[11] *Stovin v Wise* [1996] AC 923 (HL) 943–44.

[12] *Hill v Chief Constable of West Yorkshire* [1989] AC 53 (HL) 63.

[13] *Robinson* (n 1) [55].

[14] *Michael v Chief Constable of South Wales Police* [2015] UKSC 2, [2015] AC 1732 [97–100].

[15] Stelios Tofaris and Sandy Steel, 'Negligence Liability for Omissions and the Police' (2016) 75 CLJ 128, 130–32; cf Jane Stapleton, 'Duty of Care: Peripheral Parties and Alternative Opportunities for Deterrence' (1995) 111 LQR 301, 304–06, on the deterrent value of claims against parties who are not the primary wrongdoer.

[16] Donal Nolan, 'The Liability of Public Authorities for Failing to Confer Benefits' (2011) 127 LQR 260.

[17] Human Rights Act 1998 s 6.

and a victim may bring proceedings against it under section 7.[18] In *Michael* the claim under article 2 of the Convention was allowed to go to trial even though the claim in negligence failed.[19] In *DSD* the Supreme Court held the police liable under article 3 for serious failures in investigating a series of sexual assaults by a taxi driver.[20]

The concern behind *Hill*, that liability would push the police into defensive practices, has a statutory answer of its own. When a court decides what steps a defendant should have taken to meet the standard of care, it may consider whether requiring those steps might prevent a desirable activity from being undertaken.[21] That is a question of breach, not of duty. The officers in *Robinson* were not expected to stop arresting suspects, only to choose the moment with some regard for the people on the pavement.

Comment

A year later the Supreme Court applied the same method to a local authority that had failed to rehouse a family harassed by their neighbours, and found no duty, because the council had neither created the danger nor assumed responsibility for the children's safety.[22] The two decisions point in different directions on their facts and rest on the same reasoning.

Two difficulties remain. The line between acts and omissions is easy to state and hard to draw: an officer who opens a door and lets a violent man in has acted, but one who fails to lock it has not, and the difference may be small to the person on the other side. And the exceptions do much of the work. An assumption of responsibility can be found in a promise, a practice or the nature of a service, and the cases since *Robinson* show that the courts have not agreed how readily to find one.[23] The case does not resolve either difficulty; it puts them where they belong, in the analysis of established categories, and not in an open question about what is fair.

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[18] ibid s 7.

[19] *Michael* (n 14) [139].

[20] *Commissioner of Police of the Metropolis v DSD* [2018] UKSC 11, [2019] AC 196 [24].

[21] Compensation Act 2006 s 1.

[22] *N v Poole Borough Council* [2019] UKSC 25, [2020] AC 780 [64–65].

[23] For the exceptions and the cases on each, see generally James Goudkamp and Donal Nolan, *Winfield and Jolowicz on Tort* (20th edn, Sweet & Maxwell 2020).